

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/26/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**NOTICE OF MOTION TO FILE
RENEWED MOTION FOR LEAVE TO
AMEND**

(CCP § 1008, subd. (b))

**Dept.: 610
Date: June 24, 2026**

**PLAINTIFF'S NOTICE OF MOTION AND RENEWED MOTION FOR
LEAVE TO FILE THIRD AMENDED COMPLAINT PURSUANT TO
CODE OF CIVIL PROCEDURE SECTION 1008(B)**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 (serve
by Tue, June 2, 2026 per CCP section 1005(b)) **Filed by:** Plaintiff Dylan Franciscus Rosario,
Self-represented

I. NOTICE OF MOTION

TO ALL PARTIES AND THEIR COUNSEL OF RECORD:

PLEASE TAKE NOTICE that on June 24, 2026, at 9:00 a.m., or as soon thereafter as the matter

1 may be heard in Department 302 of the above-entitled Court, located at 400 McAllister Street, San
2 Francisco, California 94102, before the Honorable Joseph M. Quinn, Plaintiff Dylan Franciscus
3 Rosario will and hereby does move this Court, pursuant to Code of Civil Procedure section 1008,
4 subdivision (b), for an order granting Plaintiff leave to file a Third Amended Complaint in the
5 form lodged with Plaintiff's pending Motion for Leave to File Third Amended Complaint (filed
6 April 28, 2026, Transaction ID 79334688) and as further refined by the renewed papers tendered
7 herewith.

8 This renewed application is brought under Code of Civil Procedure section 1008, subdivision (b),
9 and is based upon NEW facts, circumstances, and law that either did not exist, or could not with
10 reasonable diligence have been presented, at the time of the original Motion for Leave to File a
11 Second Amended Complaint ("MFL-SAC") that was denied by minute order entered April 30,
12 2026.

13 The new facts, circumstances, and law are:

14 (1) **NEW CONTROLLING LAW.** Plaintiff has identified and now invokes JKC3H8 v. Colton
15 (2013) 221 Cal.App.4th 468 (Third Appellate District; Hoch, J.; review denied) as published
16 California Court of Appeal authority directly addressing the leave-to-amend / anti-SLAPP
17 sequencing issue that was the central premise of the April 23, 2026 defense MFL-SAC Oppo-
18 sition. This authority materially undermines the procedural posture against which the April
19 30, 2026 denial was entered.

20 (2) **NEW CIRCUMSTANCE.** The May 12, 2026 anti-SLAPP order entered in companion case
21 Rosario v. Abdelhalim, CGC-25-631801 (Dept. 302), is a new circumstance arising after the
22 April 30, 2026 denial that materially affects the management posture of the consolidated June
23 24, 2026 calendar in this action. (Verify Transaction ID on SFTC portal.)

24 (3) **NEW CIRCUMSTANCE.** The docketed defense MFL-SAC Opposition (filed April 23,
25 2026 in this action) contains the verbatim representation that "Plaintiff cites no authority
26 to support the proposition that he can file his Motion for Leave to Amend, as no such author-
27 ity exists to support his motion." Since the April 30, 2026 denial, JKC3H8 v. Colton has
28 surfaced as published, controlling California Court of Appeal authority squarely supporting

1 the proposition Defendant said did not exist. That post-denial juxtaposition is a new circum-
2 stance materially bearing on the diligence and good-faith showings required for the renewed
3 application.

4 The relief requested is:

- 5 (a) An order, pursuant to CCP section 1008(b), GRANTING Plaintiff's renewed application for
6 leave to file a Third Amended Complaint;
- 7 (b) An order directing the proposed Third Amended Complaint to be filed and deemed served as
8 of the date of the order;
- 9 (c) An order setting a response deadline for Defendant consistent with CCP section 471.5; and
10 (d) Such further and additional relief as the Court deems just and proper.

11

12 **II. GROUNDS FOR MOTION**

13 This Renewed Motion is made pursuant to:

- 14 • Code of Civil Procedure section 1008, subdivision (b) (renewed application based on new or
15 different facts, circumstances, or law);
- 16 • Code of Civil Procedure section 472 (amendment of right and by leave);
- 17 • Code of Civil Procedure section 473, subdivision (a)(1) (leave to amend in furtherance of
18 justice);
- 19 • Code of Civil Procedure section 576 (amendment of pleadings before or after trial in further-
20 ance of justice);
- 21 • Code of Civil Procedure section 425.16, subdivision (f) (the trial court's express management
22 authority over anti-SLAPP timing and posture);
- 23 • California Rules of Court, rule 3.1324 (motions for leave to amend); and
- 24 • This Court's inherent authority under Code of Civil Procedure section 187.

25 The procedural authority for the June 24, 2026 hearing line is the minute order entered May 13,
26 2026 (Hon. Joseph M. Quinn, Dept. 302, M. Goodman clerk), continuing the consolidated motion
27 calendar to June 24, 2026, 9:00 a.m., Department 302, and directing all parties to provide courtesy
28 copies of their filings per SF Local Rule 2.7B with a cover letter reflecting the new hearing date.

1 The further procedural authority for placement of this renewed application on that same line is the
2 parties' stipulation and the court-ordered consolidation of all pending Dept. 302 matters in this
3 action to the June 24, 2026 calendar.

4 This Renewed Motion is timely served on Defendant on or before Tuesday, June 2, 2026, the
5 deadline for moving papers calculated 16 court days plus two court days for electronic service
6 before the June 24, 2026 hearing pursuant to CCP section 1005(b).

8 **III. SUPPORTING PAPERS**

9 This Renewed Motion is based upon:

- 10 1. This Notice of Motion;
- 11 2. The Memorandum of Points and Authorities in Support of Renewed Motion for Leave to File
12 Third Amended Complaint, filed concurrently herewith;
- 13 3. The Declaration of Dylan Franciscus Rosario in Support of Renewed Motion for Leave to
14 File Third Amended Complaint, filed concurrently herewith, including the diligence showing
15 required by CCP section 1008(b);
- 16 4. The Request for Judicial Notice in Support of Renewed Motion for Leave to File Third
17 Amended Complaint, filed concurrently herewith;
- 18 5. The original Motion for Leave to File Third Amended Complaint, filed April 28, 2026 (Trans-
19 action ID 79334688), and the proposed Third Amended Complaint lodged therewith, both of
20 which are incorporated by reference;
- 21 6. The pleadings, papers, records, and files in this action and in the consolidated June 24, 2026
22 cohort; and
- 23 7. Such further evidence and argument as may be properly received by the Court at or before
24 the hearing.

26 **IV. RELATIONSHIP TO PENDING MOTIONS**

27 This Renewed Motion is procedurally distinct from a motion for reconsideration under CCP section
28 1008(a). It is a new application for the same relief under CCP section 1008(b), based on new facts,

1 circumstances, and law arising after, or not reasonably discoverable before, the April 30, 2026
2 denial of the prior MFL-SAC. As a renewed application, it is not subject to the ten-day filing limit
3 of CCP section 1008(a), and it does not seek vacatur of the April 30, 2026 order; rather, it seeks
4 the freshly noticed relief of leave to amend on the renewed showing tendered herewith. (See CCP
5 section 1008(b); *Graham v. Hansen* (1982) 128 Cal.App.3d 965, 970 [renewed application is a
6 separate motion for the same order based on new facts].)

7 This Renewed Motion is associated with, and supportive of, the consolidated motion calendar set
8 for June 24, 2026, 9:00 a.m., Dept. 302, including (without limitation) Defendant's Special Motion
9 to Strike pursuant to CCP section 425.16 (seqs 015 to 018), Defendant's Demurrer to Plaintiff's
10 First Amended Complaint (seqs 019 to 023), and Plaintiff's Motion to Strike the May 6, 2026 Reply
11 Declaration of Tyler J. O'Connell (Transaction ID 79429443). Granting this Renewed Motion will
12 materially advance the orderly disposition of those motions by placing the operative pleading on a
13 proper footing for the June 24 line.

14 **V. PRAYER**

15 For the foregoing reasons, and for the reasons set forth in the accompanying Memorandum, Dec-
16 laration, and Request for Judicial Notice, Plaintiff respectfully requests that the Court enter an
17 order:
18

- 19 1. GRANTING this Renewed Motion under CCP section 1008(b);
 - 20 2. GRANTING leave to file the proposed Third Amended Complaint lodged with the original
21 MFL-TAC and as further refined by the renewed papers tendered herewith;
 - 22 3. Directing the Third Amended Complaint to be filed and deemed served as of the date of the
23 order;
 - 24 4. Setting a response deadline for Defendant consistent with CCP section 471.5; and
 - 25 5. Granting such further relief as the Court deems just and proper.
- 26 A proposed order is lodged with the moving papers and is referenced herein.

1 **VI. SERVICE**

2 This Notice of Motion and the supporting papers are served on Defendant's counsel of record
3 (Mark G. Tapp, Tyler J. O'Connell, Mason Schubert, and Sarah J. Blithe, Porter Scott, P.C.) by
4 electronic mail per CCP section 1010.6 and Cal. Rules of Court, rule 1.21, with a Proof of Service
5 (POS-050) filed contemporaneously. Service is effectuated on or before Tuesday, June 2, 2026, in
6 compliance with CCP section 1005(b).

7 _____
8 Date: May 21, 2026

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive
Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this notice.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	CRC 3.1110	Notice contents and caption	Caption block; grounds stated	Notice body
2	CRC 3.1300	Motion notice timing where applicable	Hearing date and dept listed	Caption block
3	CCP 1005(b)	Opposition and reply timing referenced where applicable	Text cites applicable deadlines	Notice body
4	CCP 1010.6; CRC 2.251	Electronic service when used	Separate POS-050 filed	POS path